

Lavkush Tyagi v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 1 February 2021 · WRIT - C No. - 20910 of 2020 · **Writ disposed; petitioner relegated to Clause 6.5; coercive action stayed six weeks.**

HEADNOTE

Without entering the merits of a challenge to a recovery notice for alleged electricity dues of Rs. 2,47,627, the High Court disposed of the writ by directing the consumer to file a fresh representation before respondent no. 4 under Clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided by a reasoned speaking order. Coercive action was stayed for six weeks or until that decision, whichever is earlier, but only if the representation is filed within two weeks.

FACTUAL SUMMARY

Lavkush Tyagi sought certiorari to quash a recovery notice dated 19 December 2019 and mandamus that respondents 4 and 5 accept the actual electricity charges and not recover Rs. 2,47,627 or interest. He alleged disconnection without any order or decision on his application. Counsel for the Power Corporation submitted that pre-disconnection formalities had not been completed, that Rs. 2,47,627 remained due, and that any dispute as to the amount lay before respondent no. 4 under Clause 6.5. Petitioner's counsel did not dispute that forum.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternate remedy — disputed recovery notice

HOLDING

A writ challenging a recovery notice for alleged electricity dues of Rs. 2,47,627 was disposed of without entering the merits, directing the consumer to move a fresh representation before respondent no. 4 under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within two weeks, to be considered and decided by a reasoned speaking order preferably within three weeks of receipt, with no coercive action for six weeks or until that decision, whichever is earlier; the stay is unavailable if the representation is not filed. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy Writ against a recovery notice for electricity dues was disposed without merits, relegating the consumer to a Clause 6.5 representation before respondent no. 4. ¶ 1

6.5-representation-as-appropriate-remedy The Court directed a fresh Clause 6.5 representation to be decided by a reasoned speaking order and stayed coercive action only pending that representation. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Where the consumer disputed the recovery amount of Rs. 2,47,627, the statutory forum under Clause 6.5 was treated as the remedy, a position the petitioner did not contest. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE RECOVERY NOTICE DATED 19.12.2019 AND THE QUANTUM OF RS. 2,47,627

Court expressly declined to enter the merits. ¶ 1

NOT DECIDED — WHETHER DISCONNECTION WAS WITHOUT AN ORDER, AND WHETHER PRE-DISCONNECTION FORMALITIES HAD BEEN COMPLETED

¶ 1

